

Amazing Bank Unpaid Leave Policies

Policy Document for U.S. Employees

Family and Medical Leave Act (FMLA) | Personal Leave (Unpaid)

Effective Date: January 1, 2025

Executive Summary

Amazing Bank provides comprehensive unpaid leave benefits to eligible employees under the Family and Medical Leave Act (FMLA) and the firm's Personal Leave policy. This document outlines the firm's unpaid leave programs effective January 1, 2025, including FMLA leave (up to 12 weeks for qualifying family and medical reasons, or 26 weeks for military caregiver leave) and Personal Leave (up to 26 weeks for personal reasons not covered by other policies). These policies provide job-protected time off while maintaining employment continuity and benefit eligibility, reflecting the firm's commitment to supporting employees through extended absences for health, family, and personal needs[1] [2].

Section 1: Family and Medical Leave Act (FMLA)

1.1 FMLA Overview

The Family and Medical Leave Act (FMLA) is a federal law that provides eligible employees with up to 12 workweeks of unpaid, job-protected leave during a 12-month period for specified family and medical reasons. For military caregiver situations, eligible employees may receive up to 26 workweeks of unpaid leave[1][2].

Key FMLA Features:

- Up to 12 workweeks of unpaid leave per 12-month period (or 26 weeks for military caregiver)
 - Job protection—return to same or equivalent position
 - Continuation of group health benefits during leave
 - Protection from retaliation for taking FMLA leave
- Federal law applicable to covered employers

Amazing Bank FMLA Administration:

Amazing Bank complies fully with all FMLA requirements and provides FMLA-protected leave to all eligible employees. The firm's paid leave policies (Parental Leave, Critical Caregiver Leave, Short-Term Disability) often run concurrently with FMLA, providing salary continuation during FMLA-protected time off[1][2].

1.2 FMLA Eligibility Requirements

Employee Eligibility:

To qualify for FMLA leave, employees must meet the following criteria:

- Employment Duration: Have worked for Amazing Bank for at least 12 months (need not be consecutive)
- Hours Worked: Have worked at least 1,250 hours during the 12 months immediately preceding the leave
- Worksite Location: Work at a location where Amazing Bank employs at least 50 employees within 75 miles

Special Eligibility Notes:

- The 12 months of employment need not be consecutive—prior employment with Amazing Bank may count
- The 1,250 hours requirement equates to approximately 24 hours per week over 12 months
- Part-time employees may qualify if they meet the hours requirement
- Employees who do not meet FMLA eligibility may still qualify for other Amazing Bank Amazing Bank leave policies

1.3 Qualifying Reasons for FMLA Leave

FMLA leave may be taken for the following reasons:

1. Birth and Care of Newborn Child:

- Birth of employee's child
- Bonding with newborn during first 12 months after birth• Available to both mothers and fathers

2. Placement of Child for Adoption or Foster Care:

- Placement of child with employee for adoption• Placement of foster child with employee
- Bonding during first 12 months after placement

3. Care for Spouse, Domestic Partner, Child, or Parent with Serious Health Condition:

- Eligible Family Members: Spouse, domestic partner, child (under 18 or incapable of self-care due to disability), or parent
- Serious Health Condition: Illness, injury, impairment, or physical/mental condition involving inpatient care or continuing treatment by healthcare provider

4. Employee's Own Serious Health Condition:

- Illness, injury, impairment, or physical/mental condition that makes employee unable to perform essential job functions
- Includes incapacity due to pregnancy, prenatal care, or childbirth
- Includes continuing treatment for chronic conditions

5. Qualifying Exigency Related to Military Service:

- Available when employee's spouse, child, or parent is on covered active duty or called to covered active duty in Armed Forces
- Qualifying exigencies include: short-notice deployment, military events and activities, childcare and school activities, financial and legal arrangements, counseling, rest and recuperation, post-deployment activities

6. Military Caregiver Leave (26 Weeks):

- Care for covered service member (spouse, child, parent, or next of kin) with serious injury or illness incurred in line of duty
- Up to 26 workweeks during single 12-month period
- Applies to current service members and certain veterans

1.4 Serious Health Condition Defined

A "serious health condition" under FMLA includes:

Inpatient Care:

- Overnight stay in hospital, hospice, or residential medical care facility• Any subsequent treatment related to inpatient care

Continuing Treatment by Healthcare Provider:

- Period of incapacity of more than three consecutive days plus treatment by healthcare provider
- Pregnancy or prenatal care
- Chronic serious health conditions (e.g., asthma, diabetes, epilepsy) requiring periodic visits to healthcare provider
- Permanent or long-term incapacity (e.g., Alzheimer's, stroke, terminal illness)• Conditions requiring multiple treatments (e.g., chemotherapy, physical therapy, dialysis)

Examples of Serious Health Conditions:

- Cancer and cancer treatment
- Heart attack, stroke, severe heart conditions
- Major surgery and recovery
- Pregnancy complications
- Mental health conditions requiring hospitalization or continuing treatment• Chronic conditions requiring ongoing care (diabetes, asthma, back conditions)

Conditions Generally NOT Considered Serious Health Conditions:

- Common cold or flu (unless complications develop)
- Routine physical examinations
- Cosmetic treatments (unless medically necessary)
- Minor injuries (sprains, minor cuts) not requiring continuing treatment

1.5 FMLA Leave Duration and Calculation

Standard FMLA Leave:

- Up to 12 workweeks of unpaid leave in a 12-month period
- One workweek equals the number of days employee is normally scheduled to work (typically 5 days)
- Part-time employees entitled to same number of weeks as full-time employees (leave hours prorated based on schedule)

Military Caregiver Leave:

- Up to 26 workweeks of unpaid leave in single 12-month period
- Combined limit: If employee takes other FMLA leave during same 12-month period, total cannot exceed 26 weeks

12-Month Period Calculation:

Amazing Bank uses a rolling 12-month period measured backward from the date employee uses FMLA leave. Each time an employee takes FMLA leave, the remaining leave entitlement is the balance of 12 weeks not used during the immediately preceding 12 months.

Example:

- Employee takes 4 weeks FMLA leave in March 2025
- Employee requests additional leave in September 2025
- Available FMLA: 12 weeks minus any FMLA used in preceding 12 months (September 2024 - September 2025)

1.6 Types of FMLA Leave

Continuous Leave:

- Leave taken for consecutive days/weeks (e.g., surgery recovery, childbirth)•
Most common form of FMLA leave
- Requires single notification and medical certification

Intermittent Leave:

- Leave taken in separate blocks of time (e.g., days, hours) for single qualifying reason•
Available when medically necessary for serious health condition or military family leave
- Examples: chemotherapy appointments, physical therapy sessions, flare-ups of chronic condition
- NOT available for birth/adoption bonding (must be continuous)
- Requires medical certification documenting medical necessity

Reduced Schedule Leave:

- Reduced work schedule (e.g., working 4 days per week instead of 5)•
Available when medically necessary for serious health condition
- Examples: transitioning back after surgery, managing chronic condition•
Requires medical certification documenting medical necessity

Intermittent/Reduced Schedule Limitations:

- Amazing Bank may temporarily transfer employee to alternative position with equivalent pay and benefits to better accommodate intermittent or reduced schedule leave
- Employee must work with manager and Human Resources to coordinate schedules• Only smallest increment tracked by employer's timekeeping system will be deducted from FMLA entitlement (typically 1 hour minimum)

1.7 FMLA Notice Requirements

Employee Responsibilities:

Foreseeable Leave (Planned/Anticipated):

When leave is foreseeable (e.g., scheduled surgery, expected birth), employee must:

- Provide at least 30 days advance notice when possible
- If 30 days not possible, provide notice as soon as practicable (within 1-2 business days of learning of need for leave)
- Notify supervisor and contact Benefits Service Center: 1-844-ASK-AMZB (1-844-275-XXXX)
- Complete leave request forms and provide required medical certification

Unforeseeable Leave (Emergency/Unexpected):

When leave is unforeseeable (e.g., sudden illness, accident), employee must:

- Notify supervisor as soon as practicable (same day or next business day)• Follow Amazing Bank's normal call-in procedures
- Contact Benefits Service Center within 2 business days when possible
- Provide required medical certification within 15 calendar days (or as soon as practicable)

Consequences of Failure to Provide Notice:

- FMLA protection may be delayed until proper notice provided
- Leave may be denied if employee fails to provide required notice without reasonable justification
- Repeated failures may result in denial of FMLA protection

1.8 Medical Certification Requirements

Certification of Serious Health Condition:

Amazing Bank requires medical certification to support FMLA leave requests for:

- Employee's own serious health condition
- Serious health condition of spouse, domestic partner, child, or parent• Serious injury/illness of covered military service member

Required Information on Certification:

- Date condition began and expected duration
- Diagnosis and prognosis

- Appropriate medical facts regarding condition
- Statement that employee is needed to provide care (for family member's condition)
- Estimate of time employee needs for care or is unable to work
- For intermittent/reduced schedule: medical necessity and expected frequency/duration

Timing and Submission:

- Employee has 15 calendar days from request to provide completed certification
- Extensions granted for circumstances beyond employee's control
- Submit certification to Benefits Service Center (not supervisor)
- Medical information kept confidential in separate medical file

Incomplete or Insufficient Certification:

- Amazing Bank will notify employee of deficiencies
- Employee has 7 calendar days to cure deficiencies
- Leave may be denied if complete certification not provided timely

Recertification:

Amazing Bank may request recertification:

- No more frequently than every 30 days unless: employee requests extension, circumstances change significantly, or employer receives information casting doubt on validity of certification
- For chronic conditions: no more than every 6 months
- At end of minimum period specified in certification if additional leave needed

Second and Third Opinions:

- Amazing Bank may require second medical opinion at employer's expense
- If first and second opinions conflict, employer may require third opinion (binding on both parties) at employer's expense
- Employee may not be required to see healthcare provider designated by employer on recurring basis

1.9 Job Protection and Restoration Rights

Return to Same or Equivalent Position:

Upon return from FMLA leave, employees are entitled to:

- Same position held before leave, OR
- Equivalent position with equivalent pay, benefits, and other terms and conditions of employment

"Equivalent Position" Defined:

- Virtually identical pay (including bonuses, incentives, shift differentials)
- Same or equivalent benefits
- Same or substantially similar duties, responsibilities, and authority
- Same shift or equivalent work schedule

- Same or geographically proximate worksite

Restoration Rights Include:

- No loss of benefits accrued before leave began
- Reinstatement of seniority and seniority-based rights (unless lost during leave per policy applicable to other leaves)
- No adverse action based on taking FMLA leave

Key Employee Exception:

- FMLA allows denial of restoration to "key employees" (salaried, highest-paid 10% of workforce within 75 miles) if necessary to prevent substantial economic injury to employer
- Amazing Bank will notify employee if classified as key employee and provide opportunity to return to work immediately
- Rarely invoked exception

Situations Where Job Restoration Not Required:

- Employee would have been laid off or terminated regardless of taking FMLA leave (e.g., workforce reduction, position elimination, poor performance documented before leave)
- Employee fraudulently obtained FMLA leave
- Employee unequivocally advises employer of intent not to return
- Employee fails to return from leave after expiration of FMLA entitlement

1.10 Benefits Continuation During FMLA Leave

Group Health Benefits:

During FMLA leave, Amazing Bank continues group health benefits (Medical, Dental, Vision) on same terms as if employee continued working:

- Coverage continues at same level
- Employee pays same share of premiums as before leave
- Amazing Bank continues employer contribution
- No waiting period or new pre-existing condition exclusion upon return

Premium Payment During Leave:

- Paid Leave: If employee receives any pay during FMLA leave (e.g., through Short-Term Disability, Parental Leave), employee premiums deducted from pay on normal schedule
- Unpaid Leave: Employee billed directly for employee share of premiums; payment due within 30 days
- Failure to Pay: Coverage may be cancelled if payment more than 30 days late (15-day grace period notice provided)
- Upon Return: Coverage reinstated immediately upon return without waiting period or exclusions

Other Benefits During FMLA Leave:

- Life and Accident Insurance: Continue with premium payments
- Disability Insurance: Coverage continues; premiums deducted from any pay received

- 401(k) Savings Plan: Contributions cease during unpaid leave; may resume upon return
- Vacation/Sick Time: Accruals may be suspended during unpaid FMLA leave (per Amazing Bank policy)
- Seniority: Service credit continues to accrue during FMLA leave

Recovery of Premiums:

If employee fails to return from FMLA leave for reasons other than:

- Continuation, recurrence, or onset of serious health condition, or
- Circumstances beyond employee's control

Amazing Bank may recover health insurance premiums paid during unpaid FMLA leave.

1.11 Interaction with Amazing Bank Paid Leave Policies

Concurrent Running:

FMLA leave runs concurrently with Amazing Bank paid leave policies when applicable:

FMLA + Parental Leave:

- Parental Leave (16 weeks paid) runs concurrently with FMLA (12 weeks)
- First 12 weeks satisfy FMLA requirements for eligible employees
- Remaining 4 weeks of Parental Leave job-protected under Amazing Bank policy• Employee receives full salary during first 12 weeks (satisfying FMLA); remaining 4 weeks also paid

FMLA + Critical Caregiver Leave:

- Critical Caregiver Leave (4 weeks paid) runs concurrently with FMLA when caring for spouse, domestic partner, child, or parent with serious health condition
- Employee receives full salary during 4 weeks
- FMLA provides job protection for full 12 weeks if additional time needed (remaining 8 weeks unpaid)

FMLA + Short-Term Disability (STD):

- STD (up to 26 weeks, full or partial pay based on tenure) runs concurrently with FMLA
- Employee receives STD payments during FMLA period
- FMLA provides 12 weeks job protection; STD provides up to 26 weeks job protection• If employee exhausts 12 weeks FMLA but still on STD, job protection continues under STD policy

FMLA + Sick Time:

- Employees may use accrued sick time during FMLA leave
- Sick time provides pay; FMLA provides job protection
- Runs concurrently with FMLA when used for qualifying FMLA reason

State Paid Family Leave Coordination:

In states with paid family leave programs (California, New Jersey, New York, Washington, etc.):

- State paid leave runs concurrently with FMLA when applicable
- FMLA provides job protection; state program provides wage replacement•
- Amazing Bank paid leave policies may supplement state benefits•
- Employees should contact HR for state-specific coordination

1.12 Intermittent Leave and Reduced Schedule Administration

Tracking Intermittent Leave:

- Leave time counted in smallest increment used by Amazing Bank timekeeping system (typically 1 hour)
- Each hour taken counts against 12-week FMLA entitlement
- Example: Employee normally works 40 hours/week; takes 8 hours intermittent FMLA leave = 0.2 weeks used (8/40)

Employee Obligations:

- Make reasonable efforts to schedule foreseeable treatment during non-work hours•
- Provide advance notice of scheduled appointments when possible
- Coordinate with supervisor and HR regarding scheduling
- Follow call-in procedures for unscheduled absences

Employer Rights:

- May temporarily transfer employee to alternative position with equivalent pay/benefits to better accommodate intermittent schedule
- May establish procedures for requesting intermittent leave (e.g., call-in requirements)
- May request periodic reports on status and intent to return

1.13 Returning from FMLA Leave

Fitness-for-Duty Certification:

For FMLA leave due to employee's own serious health condition, Amazing Bank may require fitness-for-duty certification before return:

- Certification from healthcare provider that employee able to resume work•
- May be required for each intermittent absence if reasonable safety concern•
- Must be job-related and consistent with business necessity
- Certification requirements communicated in designation notice

Return to Work Process:

1. Contact supervisor and HR to confirm return date (typically same as scheduled end of leave)
2. Provide fitness-for-duty certification if required
3. Complete any return-to-work documentation
4. Resume duties in same or equivalent position

Failure to Return:

- If employee fails to return at end of FMLA leave without seeking extension or providing valid reason, employment may be terminated
- If employee provides insufficient fitness-for-duty certification, return may be delayed
- Continued absence without communication may be treated as voluntary resignation

Extensions Beyond FMLA:

If additional time needed beyond 12 weeks FMLA:

- Employee may request Personal Leave (unpaid, up to 26 weeks total)
- Request must be made before FMLA expiration
- No guarantee of job protection beyond FMLA entitlement (except as required by law or other policies)
- Discuss with HR before FMLA leave expires

1.14 FMLA Protections and Non-Retaliation

Protected Rights:

Employees exercising FMLA rights are protected from:

- Termination or discipline for taking FMLA leave
- Being counted against under "no-fault" attendance policies•
Loss of benefits accrued before leave
- Retaliation for requesting or taking FMLA leave
- Interference with FMLA rights

Prohibited Actions:

Amazing Bank will not:

- Discourage employee from taking FMLA leave
- Manipulate employee's work hours to avoid FMLA eligibility
- Use taking FMLA leave as negative factor in employment decisions (promotions, raises, performance reviews)
- Retaliate against employee for filing FMLA complaint

Employee Recourse:

Employees who believe their FMLA rights have been violated may:

- File internal complaint with Amazing Bank HR or Employee Relations• File complaint with U.S. Department of Labor Wage and Hour Division• File private lawsuit (within 2-3 years of violation)

1.15 FMLA Administration and Contact Information

Leave Request Process:

1. Notify supervisor of need for leave
2. Contact Benefits Service Center: 1-844-ASK-AMZB (1-844-275-XXXX) 3. Complete FMLA request forms and medical certification
4. Submit documentation to leave administrator

5. Receive FMLA designation notice (approved/denied)
6. Coordinate leave details with supervisor and HR

Required Notices:

Amazing Bank provides employees with:

- General FMLA notice (posted in workplace and included in onboarding materials)
- Eligibility notice (within 5 business days of learning of potential FMLA need)
- Rights and responsibilities notice (with eligibility notice)
- Designation notice (approved or denied) within 5 business days of sufficient information

Employee Record-Keeping:

Employees should maintain copies of:

- FMLA request forms
- Medical certifications
- FMLA designation notices
- Communications regarding leave
- Documentation of premium payments during leave

Section 2: Personal Leave (Unpaid)

2.1 Personal Leave Overview

Amazing Bank provides Personal Leave as an unpaid leave of absence option for eligible employees who need extended time away from work for reasons not covered by other leave policies[1][2].

Key Personal Leave Features:

- Up to 26 weeks of unpaid leave in 12-month period
- Minimum 4 weeks job-protected
- Available for personal reasons not covered by FMLA, STD, or other policies
- Discretionary approval based on business needs
- Benefits continuation available with employee premium payments

Purpose:

Personal Leave provides flexibility for employees experiencing extended personal circumstances that require time away from work but do not qualify for FMLA or other protected leave, such as:

- Extended personal matters
- Family obligations not covered by FMLA
- Educational pursuits
- Relocation or transition periods
- Other personal situations requiring extended absence

2.2 Eligibility Requirements

Employee Eligibility:

To request Personal Leave, employees must:

- Be actively employed by Amazing Bank on U.S. payroll
- Be benefits-eligible (regularly scheduled to work 20+ hours per week)
- Have satisfactory performance record
- Not be subject to active disciplinary action

No Minimum Service Requirement:

Unlike FMLA, Personal Leave has no minimum service or hours-worked requirement. All benefits-eligible employees may request Personal Leave.

Approval is Discretionary:

Personal Leave approval is not guaranteed and is subject to:

- Business needs and operational requirements
- Manager approval
- Human Resources review
- Nature and duration of requested leave
- Employee's work history and performance

2.3 Personal Leave Duration

Maximum Duration:

- Up to 26 weeks of unpaid leave in a 12-month period
- 12-month period measured as rolling 12 months backward from start of leave

Minimum Job Protection:

- First 4 weeks of approved Personal Leave are job-protected
- Employee has right to return to same or equivalent position during first 4 weeks
- After 4 weeks, job protection not guaranteed (though reinstatement efforts made)

Extensions:

- Extensions beyond initial approved period may be requested
- Require approval from manager and Human Resources
- Not guaranteed; based on business needs
- Must be requested before current leave expires

2.4 Requesting Personal Leave

Advance Notice:

Employees should provide as much advance notice as possible:

- Recommended: 30 days advance notice for foreseeable leave
- Minimum: 2 weeks notice when possible

- Emergency situations: Notify as soon as practicable

Request Process:

1. Discuss need for leave with supervisor
2. Contact Human Resources or Benefits Service Center: 1-844-ASK-AMZB 3. Complete Personal Leave request form
4. Provide supporting documentation if applicable
5. Await approval decision from manager and HR
6. Receive confirmation of approved leave terms

Required Information:

Leave request should include:

- Reason for leave (general nature; detailed personal information not required)• Requested start date
- Expected duration
- Expected return date
- Contact information during leave

Supporting Documentation:

Amazing Bank may request documentation to support leave request:

- For medical reasons not covered by FMLA: medical documentation• For educational leave: enrollment verification
- For other reasons: appropriate verification as needed

2.5 Approval and Denial

Approval Criteria:

Personal Leave approval considers:

- Business impact of employee's absence
- Ability to cover employee's responsibilities
- Duration of requested leave
- Employee's performance and work history
- Frequency of prior leave requests
- Operational needs of department

Approval Decision:

- Manager and Human Resources review request
- Decision typically provided within 5-10 business days• Approved leave terms confirmed in writing
- Employee notified of expectations and conditions

Denial:

Personal Leave may be denied if:

- Business needs cannot accommodate absence
- Critical business period or project

- Staffing constraints
- Performance or attendance concerns

- Insufficient notice provided

Appeal Process:

- Employee may discuss denial with Human Resources
- Additional information or modified request may be submitted
- Final decision rests with management and HR

2.6 Benefits Continuation During Personal Leave

Health Benefits (Medical, Dental, Vision):

Employees on approved Personal Leave may continue health benefits:

- Coverage continues at same level as during active employment
- Employee must pay full premium (employee + employer share) on after-tax basis
- Direct billing to employee's home address
- Premiums due within 30 days of invoice date
- Failure to pay results in coverage termination

Premium Payment:

- Monthly invoices mailed to home address on record
- Payment must be received by due date to maintain coverage
- 45 days for first invoice, 30 days for subsequent invoices
- If payment not received timely, coverage terminated
- Reinstatement available for medical coverage only within 6 months of termination (must pay past due premiums)

Life and Accident Insurance:

- Basic Life Insurance: Continues at no cost to employee during approved leave
- Supplemental Term Life Insurance: May continue with employee premium payments via direct bill
- AD&D Insurance: May continue with employee premium payments via direct bill
- Business Travel Accident Insurance: Coverage suspended during leave

Disability Insurance:

- Short-Term Disability: Not applicable during unpaid Personal Leave
- Long-Term Disability: Coverage continues with premium payments

Spending Accounts:

- Health Care Spending Account (HCSA): May continue with after-tax contributions via invoice; stopping contributions terminates participation
- Dependent Care Spending Account (DCSA): Participation suspended during unpaid leave; may file claims only for expenses incurred before leave began
- Transportation Spending Account: Participation terminated; unused credits forfeited if not returned and re-enrolled

401(k) Savings Plan:

- Employee contributions cease during unpaid leave
- Employer matching and automatic pay credits suspended

- Vesting service may continue to accrue during approved leave (up to certain limits)
- May resume contributions upon return to work

Vacation and Sick Time:

- Accruals suspended during unpaid Personal Leave
- Existing balances remain available
- Accruals resume upon return to work

Other Benefits:

- Group Legal Services Plan: May continue with premium payments
- Group Personal Excess Liability Plan: May continue with premium payments
- Employee Assistance Program (EAP): Remains available during leave at no cost

2.7 Employment Status During Personal Leave

Job Protection:

- First 4 weeks: Job-protected—employee entitled to return to same or equivalent position
- After 4 weeks: Job protection not guaranteed
- Amazing Bank will make reasonable efforts to return employee to same or similar position
- No guarantee of specific role, location, or supervisor after 4 weeks

Employment Continuity:

- Employment relationship continues during approved Personal Leave
- Service credit may continue to accrue (up to certain limits)
- Employee remains subject to company policies
- Employee expected to maintain contact with supervisor/HR as agreed

Communication During Leave:

- Employee should provide periodic updates on status and return plans
- Contact HR if circumstances change or extension needed
- Respond to employer communications regarding leave status
- Confirm return date at least 2 weeks before scheduled return

2.8 Returning from Personal Leave

Return Process:

1. Contact supervisor and Human Resources at least 2 weeks before planned return
2. Confirm return date
3. Complete any required documentation
4. Attend return-to-work meeting if requested
5. Resume duties in assigned position

Reinstatement:

- Within 4 weeks: Return to same or equivalent position guaranteed

- After 4 weeks: Reinstatement to comparable position based on availability

- Same or similar compensation and benefits
- No guarantee of same department, location, or role if organizational changes occurred

Early Return:

- Employee may request early return from leave
- Requires approval from manager and HR
- Subject to business needs and position availability
- Provide at least 2 weeks notice of early return

Failure to Return:

If employee fails to return on scheduled date without communication:

- Treated as voluntary resignation
- Employment may be terminated
- Benefits coverage ends
- Final paycheck processed per normal termination procedures

2.9 Personal Leave vs. Other Leave Options

When to Use Personal Leave:

Personal Leave is appropriate when:

- Employee needs extended time off not covered by FMLA
- Reason does not qualify for Short-Term Disability
- Parental Leave and Critical Caregiver Leave not applicable
- Vacation/personal days insufficient
- Situation requires more than a few weeks away

Other Leave Options to Consider First:

- FMLA: If employee qualifies based on serious health condition of self or family
- Parental Leave: For birth or adoption (16 weeks paid)
- Critical Caregiver Leave: For serious health event of spouse, domestic partner, child, or parent (4 weeks paid)
- Short-Term Disability: For employee's own illness/injury (up to 26 weeks, full or partial pay)
- Military Leave: For military service obligations
- Vacation/Personal Days: For shorter absences

Coordination with FMLA:

- Personal Leave may run concurrently with FMLA if employee is FMLA-eligible and reason qualifies
- FMLA provides 12 weeks job protection; Personal Leave extends to 26 weeks total
- After FMLA expires (12 weeks), remaining Personal Leave (up to 14 additional weeks) has 4-week job protection only

2.10 Termination of Personal Leave

Personal Leave Ends When:

- Approved leave period expires and employee returns to work
- Employee resigns or voluntarily terminates employment
- Employee fails to return on scheduled date without communication
- Employee obtains other employment during leave
- Maximum 26 weeks reached
- Employee fails to maintain required premium payments for benefits

Extension Denials:

- If extension request denied, employee must return on originally scheduled date or employment may be terminated
- Consider other leave options (FMLA, disability) if circumstances changed

Benefits Upon Termination:

- Health benefits coverage ends last day of month of termination
- COBRA continuation coverage available for medical, dental, vision
- Final paycheck includes payment for unused vacation (per state law)
- 401(k) account becomes participant-directed; may remain in plan or roll over

Section 3: Leave Administration and Compliance

3.1 Requesting Leave

Contact Information:

- Benefits Service Center: 1-844-ASK-AMZB (1-844-275-XXXX)
- Hours: Monday-Friday, 8 a.m. to 7 p.m. Eastern time
- Outside U.S.: 1-212-552-XXXX

My Rewards Portal:

- Website: myrewards.amazingbank.com
- Submit leave requests online
- View leave balances and status
- Access leave forms and documentation

Discover Portal:

- HR Policies & Standards > Family and Medical Leave
- HR Policies & Standards > Leaves > Personal Leave - Unpaid
- Leave of Absence Resources

3.2 Manager and HR Responsibilities

Manager Obligations:

- Respond promptly and supportively to leave requests
- Maintain confidentiality regarding employee's private matters
- Coordinate with HR on leave administration
- Facilitate smooth transition before and after leave
- Ensure no retaliation or adverse action for taking leave
- Welcome employee back and provide reintegration support

HR Responsibilities:

- Determine FMLA eligibility and designation
- Process leave requests and approvals
- Provide required notices to employees
- Track leave usage and remaining entitlements
- Coordinate benefits continuation and premium billing
- Ensure compliance with federal, state, and local laws

3.3 State and Local Law Compliance

State-Specific Leave Laws:

Many states and localities have leave laws providing greater benefits than FMLA:

- California: California Family Rights Act (CFRA), California Paid Family Leave (PFL), Pregnancy Disability Leave (PDL)
- New York: New York Paid Family Leave
- New Jersey: New Jersey Family Leave Act, New Jersey Family Leave Insurance
- Washington: Washington Paid Family and Medical Leave
- Connecticut, Massachusetts, Oregon, Rhode Island, Colorado, Delaware, Maryland: Various paid family/medical leave programs

Most Generous Provision Applies:

When federal FMLA, state law, and Amazing Bank policy differ, the provision most favorable to the employee applies.

State-Specific Guidance:

Employees should contact Human Resources or Benefits Service Center for state-specific leave rights and coordination of benefits.

3.4 Privacy and Confidentiality

Protected Information:

All leave-related information is confidential:

- Medical documentation and diagnoses
- Family circumstances and personal matters
- Reasons for leave requests

- Communications with healthcare providers

HIPAA Compliance:

- Medical information stored securely in separate medical files
- Access limited to authorized leave administrators and HR personnel
- Not shared with supervisors or managers beyond need-to-know
- Compliance with Health Insurance Portability and Accountability Act (HIPAA)

ADA Compliance:

- Medical inquiries limited to job-related and consistent with business necessity
- Reasonable accommodations provided for disabilities
- Confidentiality of disability-related information maintained

3.5 Fraud Prevention

Good Faith Use:

Leave benefits provided in good faith for legitimate purposes. Employees expected to:

- Use leave only for stated qualifying purposes
- Provide truthful and accurate information
- Submit genuine medical documentation when required
- Notify employer of changes in circumstances

Consequences of Misuse:

Fraudulent use of leave may result in:

- Denial of leave request
- Recoupment of paid benefits
- Disciplinary action up to and including termination
- Loss of FMLA protections
- Legal action for fraud

Examples of Fraud:

- Working other employment during leave
- Falsifying medical certification
- Using leave for purposes other than stated reason
- Misrepresenting facts to obtain leave approval

Section 4: Additional Leave Resources and Support

4.1 Employee Assistance Program (EAP)

Spring Health EAP Services:

- Confidential counseling for personal, family, and work-related issues
- Eight free therapy sessions per year
- 24/7 crisis support: 1-877-576-XXXX
- Mental health support during and after leave

- Stress management and coping resources

Access:

- Website: AmazingBank.springhealth.com
- Phone: 1-877-576-XXXX
- Available to all benefits-eligible employees and household members

4.2 LifeCare Services

Comprehensive Support:

- Elder care and caregiving resources
- Legal and financial consultations
- Educational planning assistance
- Assistance with complex life situations
- Available 24/7 at no cost

Contact:

- Phone: 1-877-576-XXXX

4.3 Health Advocate

Healthcare Navigation:

- Help finding providers and specialists
- Assistance with claims and billing issues
- Appointment scheduling support
- Coordination of complex medical situations

4.4 Disability and Reasonable Accommodation

Americans with Disabilities Act (ADA):

Employees with disabilities may be entitled to reasonable accommodations:

- Extended leave beyond FMLA as reasonable accommodation
- Modified work schedules or duties
- Assistive devices or workplace modifications
- Interactive process with HR to determine accommodations

Request Process:

Contact Human Resources to discuss potential accommodations and initiate interactive process.

Section 5: Important Notices and Disclaimers

5.1 Plan Document Authority

This policy document provides summary of Amazing Bank unpaid leave policies. Complete details contained in official HR policy documents, FMLA regulations (29 CFR Part 825), and applicable law. In event of conflict between this document and official documents or law, official documents and law govern.

5.2 Right to Amend or Terminate

Amazing Bank reserves right to amend, modify, or terminate leave policies at any time, subject to applicable law. Changes may be made to policy provisions, eligibility, or administration.

5.3 No Guarantee of Employment

Participation in leave benefits does not guarantee employment or constitute employment contract. Employment with Amazing Bank is at-will and may be terminated at any time by either party, subject to applicable law.

5.4 Equal Opportunity and Non-Discrimination

Amazing Bank administers all leave policies in compliance with federal, state, and local anti-discrimination laws. Leave benefits provided without regard to race, color, national origin, sex, gender, age, religion, disability, marital status, sexual orientation, veteran status, genetic information, or any other protected characteristic.

5.5 Coordination with Other Policies

Leave policies coordinate with:

- Attendance and punctuality policies
- Performance management processes
- Disability and reasonable accommodation policies•
- Benefits eligibility requirements
- Workforce reduction and layoff procedures

Questions regarding interaction of policies should be directed to Human Resources.

Conclusion

Amazing Bank's unpaid leave policies—FMLA and Personal Leave—provide important protections and flexibility for employees experiencing extended absences from work. FMLA offers federally mandated job-protected leave for qualifying family and medical reasons, while Personal Leave provides discretionary unpaid time off for circumstances not covered by other policies.

These policies, combined with Amazing Bank's comprehensive paid leave benefits (Parental Leave, Critical Caregiver Leave, Short-Term Disability, Sick Time), create a holistic approach to supporting employees through diverse life circumstances while maintaining employment continuity and benefit protections.

Employees are encouraged to understand their leave rights, communicate proactively with supervisors and Human Resources, and utilize available support resources. For questions about leave eligibility, requests, or administration, contact the Benefits Service Center at 1-844-ASK-AMZB or access resources through the My Rewards portal.

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Next Review Date: December 2025

References

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- [3] U.S. Department of Labor. (2023). Family and Medical Leave Act (FMLA). <https://www.dol.gov/agencies/whd/fmla>
- [4] U.S. Department of Labor. (2023). FMLA Fact Sheet. <https://www.dol.gov/sites/dolgov/files/WHD/legacy/files/whdfs28.pdf>